

HOUSE No. 5234

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 16, 2026.

The committee on Public Health, to whom were referred the petition (accompanied by bill, House, No. 1374) of Bradley H. Jones, Jr., and others for legislation to establish a state-wide drug repository program; the petition (accompanied by bill, House, No. 1389) of Joseph D. McKenna for legislation to prohibit the use of state funds for Planned Parenthood Federation of America; the petition (accompanied by bill, House, No. 2222) of William F. MacGregor for an investigation by a special commission (including members of the General Court) relative to the quality and accessibility of telehealth; the petition (accompanied by bill, House, No. 2359) of James Arciero, James Dolan and Colleen M. Garry relative to the timely issuance of death certificates to funeral directors; the petition (accompanied by bill, House, No. 2360) of James Arciero, Kimberly N. Ferguson and James Dolan relative to the operation of crematories by funeral establishments; the petition (accompanied by bill, House, No. 2361) of James C. Arena-DeRosa relative to the right to inspect medical records; the petition (accompanied by bill, House, No. 2365) of Bruce J. Ayers relative to the civilian certification of military medical personnel; the petition (accompanied by bill, House, No. 2368) of Bruce J. Ayers for an investigation by a special commission (including members of the General Court) to study the use, disposal, and potential re-use of durable medical equipment in hospitals and care facilities under the jurisdiction of the Commonwealth; the petition (accompanied by bill, House, No. 2373) of Donald R. Berthiaume, Jr. and Paul McMurtry relative to medical records requests; the petition (accompanied by bill, House, No. 2377) of Nicholas A. Boldyga relative to administering and dispensing controlled substances by certain practitioners; the petition (accompanied by bill, House, No. 2379) of Daniel Cahill relative to flavored tobacco products and tobacco product flavor enhancers; the petition (accompanied by bill, House, No. 2385) of Leigh Davis and others for an investigation by a special commission (including members of the General Court) relative to mitigating the risks of avian influenza also

known as H5N1; the petition (accompanied by bill, House, No. 2386) of Michael S. Day for legislation to prohibit the participation of healthcare professionals in the torture and abuse of prisoners; the petition (accompanied by bill, House, No. 2387) of Vincent Lawrence Dixon relative to nursing and health care worker staffing levels; the petition (accompanied by bill, House, No. 2388) of Vincent Lawrence Dixon for legislation to encourage and improve the level of availability of physicians; the petition (accompanied by bill, House, No. 2404) of Kate Donaghue, Angelo J. Puppolo, Jr. and others relative to increased availability of opioid antagonist medication; the petition (accompanied by bill, House, No. 2405) of Daniel M. Donahue for legislation to ensure safe medication administration; the petition (accompanied by bill, House, No. 2406) of Daniel M. Donahue relative to health care worker and first responder safety; the petition (accompanied by bill, House, No. 2409) of Michelle M. DuBois relative to the burning of construction and demolition waste as biofuel and further regulating the permitting or operation of energy-generating facilities; the petition (accompanied by bill, House, No. 2411) of Kirstin Beatty relative to reducing non-thermal non-ionizing radiation exposures from technology and electricity; the petition (accompanied by bill, House, No. 2413) of Tricia Farley-Bouvier that the Department of Public Health add electromagnetic sensitivity (EMS) to the list of diseases dangerous to the public health; the petition (accompanied by bill, House, No. 2415) of Carole A. Fiola relative to the practice of “dry needling” or “trigger point acupuncture” by certain health care professionals; the petition (accompanied by bill, House, No. 2419) of Paul K. Frost and Joseph D. McKenna for legislation to prohibit local boards of health from banning the sale of tobacco products sold legally in the Commonwealth; the petition (accompanied by bill, House, No. 2420) of William C. Galvin for legislation to authorize emergency medical technicians to restrain patients who present immediate or serious threats of bodily harm to themselves or others; the petition (accompanied by bill, House, No. 2422) of William C. Galvin that the Department of Public Health be authorized to establish a Parkinson's disease public information and education program; the petition (accompanied by bill, House, No. 2423) of Sean Garballey, Christine P. Barber and Paul J. Donato relative to oral health examinations for public school students; the petition (accompanied by bill, House, No. 2428) of Colleen M. Garry relative to the health of mothers and born alive fetuses after the second trimester; the petition (accompanied by bill, House, No. 2429) of Colleen M. Garry relative to testing persons convicted of sexual assault for the HIV virus;

the petition (accompanied by bill, House, No. 2430) of Colleen M. Garry for legislation to require the screening of newborns for Krabbe Disease and other lysosomal storage disorders; the joint petition (accompanied by bill, House, No. 2435) of Homar Gómez, Adam Gomez and others relative to the gene associated with increased risk of end-stage renal disease; the petition (accompanied by bill, House, No. 2443) of James K. Hawkins for legislation to prohibit smoking in motor vehicles in which young children are passengers; the petition (accompanied by bill, House, No. 2444) of Natalie M. Higgins, Jack Patrick Lewis and others relative to expanding after-death options and the disposal of human bodies; the petition (accompanied by bill, House, No. 2445) of Natalie M. Higgins, Margaret R. Scarsdale and others relative to essential services in hospitals; the petition (accompanied by bill, House, No. 2448) of Natalie M. Higgins and others relative to registered nurse patient assignment; the petition (accompanied by bill, House, No. 2452) of Vanna Howard for an investigation by a special commission (including members of the General Court) relative to the care, support, and resources for individuals experiencing Hyperemesis Gravidarum; the petition (accompanied by bill, House, No. 2453) of Steven S. Howitt relative to exempting barber shops from certain system sewage flow design criteria; the petition (accompanied by bill, House, No. 2456) of Bradley H. Jones, Jr. and others relative to establishing a commission (including members of the General Court) to study the encouragement of organ donation; the petition (accompanied by bill, House, No. 2457) of Bradley H. Jones, Jr. and others relative to fentanyl testing during certain urine drug screenings at acute care hospitals; the petition (accompanied by bill, House, No. 2460) of Hannah Kane and others relative to standardizing the date labeling of food; the petition (accompanied by bill, House, No. 2461) of Hannah Kane and Carmine Lawrence Gentile relative to the efficient operation of hospitals; the petition (accompanied by bill, House, No. 2468) of Meghan K. Kilcoyne and James C. Arena-DeRosa for legislation to promote the health of children by regulating sugary drinks in schools, nutritional information at certain restaurants and media literacy in schools; the petition (accompanied by bill, House, No. 2469) of Michael P. Kushmerek, Christine P. Barber and others relative to the discontinuance of health service; the petition (accompanied by bill, House, No. 2471) of Michael P. Kushmerek relative to cooling centers during periods of excessive heat; the petition (accompanied by bill, House, No. 2472) of Kathleen R. LaNatra and Patrick Joseph Kearney relative to the distribution of compounded medications; the petition (accompanied by

bill, House, No. 2479) of David Henry Argosky LeBoeuf and Vanna Howard relative to the lead law and promoting equal access to lead-free housing; the petition (accompanied by bill, House, No. 2480) of David Paul Linsky relative to registered nurse first assistants; the petition (accompanied by bill, House, No. 2481) of David Paul Linsky relative to prohibiting the sale of dextromethorphan to minors; the petition (accompanied by bill, House, No. 2485) of Jay D. Livingstone relative to the cardiac health of children and student athletes; the petition (accompanied by bill, House, No. 2486) of Jay D. Livingstone relative to clinical decision making; the petition (accompanied by bill, House, No. 2487) of Joan Martorella relative to dental service quotes; the petition (accompanied by bill, House, No. 2494) of Joseph D. McKenna relative to procedures for prescribing or dispensing pain medications in emergency rooms to certain persons on probation; the petition (accompanied by bill, House, No. 2496) of Joseph D. McKenna relative to the sale or provision of certain competitive foods at schools; the petition (accompanied by bill, House, No. 2502) of John Francis Moran, Samantha Montaña and others for legislation to clarify prescription monitoring program activities; the petition (accompanied by bill, House, No. 2507) of Edward R. Philips and Michael D. Brady that the Department of Public Health, the Health Policy Commission and the Center for Health Information Analysis study current access to essential health services; the petition (accompanied by bill, House, No. 2509) of Edward R. Philips relative to the availability of prescription medication during an emergency; the petition (accompanied by bill, House, No. 2511) of Edward R. Philips relative to protecting identities on death certificates; the petition (accompanied by bill, House, No. 2513) of Bridget Plouffe and others relative to the use of the term physician; the petition (accompanied by bill, House, No. 2514) of Bridget Plouffe relative to the definition of health care adverse outcome disclosure, apology and early offer programs; the petition (accompanied by bill, House, No. 2515) of Bridget Plouffe relative to the exposure of public safety officials to HIV; the petition (accompanied by bill, House, No. 2518) of David Allen Robertson for legislation relative to environmental public health; the petition (accompanied by bill, House, No. 2519) of David Allen Robertson for legislation to establish the environmental public health trust fund for cancer surveillance and environmental data collection within the Department of Public Health; the petition (accompanied by bill, House, No. 2520) of David M. Rogers, Steven Owens and Patrick Joseph Kearney relative to improving environmental conditions to reduce asthma in schools; the petition

(accompanied by bill, House, No. 2522) of David M. Rogers for legislation to establish a division of indoor environments within the Department of Public Health; the petition (accompanied by bill, House, No. 2524) of John H. Rogers that the Department of Public Health be authorized and directed to maintain the provision of health care services in the towns of Norwood and Foxborough; the petition (accompanied by bill, House, No. 2533) of Adam J. Scanlon relative to presumptive disability retirement of certain fire, police, and emergency medical technicians; the petition (accompanied by bill, House, No. 2534) of Margaret R. Scarsdale and Michael D. Brady that the Department of Public Health create a process for state receivership for certain hospitals or free-standing clinics that provides essential health services; the petition (accompanied by bill, House, No. 2538) of Danillo A. Sena and Patrick Joseph Kearney for legislation to establish a fetal alcohol spectrum disorders program within the Department of Public Health; the petition (accompanied by bill, House, No. 2539) of Todd M. Smola relative to disclosures of certain hazards in well water; the petition (accompanied by bill, House, No. 2540) of Todd M. Smola for legislation to further regulate community-based health initiative requirements for the construction of certain nursing facilities; the petition (accompanied by bill, House, No. 2542) of Priscila S. Sousa for legislation to address state sanitation code violations regarding infestations of rental units; the petition (accompanied by bill, House, No. 2543) of Priscila S. Sousa for legislation to increase the accountability of hospitals that interrupt or divert required services; the petition (accompanied by bill, House, No. 2556) of Marcus S. Vaughn that cities and towns and schools be required to provide and maintain automated external defibrillators at athletic fields, parks and playgrounds; the petition (accompanied by bill, House, No. 2558) of Marcus S. Vaughn relative to licensed physicians or registered optometrists registered to issue written prescriptions for eyeglasses or contact lenses; the petition (accompanied by bill, House, No. 2560) of David T. Vieira for legislation to regulate changes to previously issued birth certificates; the petition (accompanied by bill, House, No. 2561) of Tommy Vitolo relative to the adoption of names upon marriage; the petition (accompanied by bill, House, No. 2562) of Tommy Vitolo relative to the prohibition of the sale of certain tobacco products to persons born on or after January 1, 2006; the petition (accompanied by bill, House, No. 3955) of Manny Cruz relative to birth certificates; the petition (accompanied by bill, House, No. 3956) of Leigh Davis for legislation to exempt Fairview Hospital from determination of need requirements; the petition (accompanied by bill,

House, No. 3957) of Michael J. Finn for legislation to establish a fund for the Western Massachusetts Hospital; the petition (accompanied by bill, House, No. 3958) of Christopher Richard Flanagan relative to expanding pathogen testing capabilities for aquaculture; the petition (accompanied by bill, House, No. 3960) of Kate Lipper-Garabedian relative to physicians providing testimony in an administrative or judicial hearing; the petition (accompanied by resolve, House, No. 4022) of James C. Arena-DeRosa for an investigation by a special commission (including members of the General Court) relative to the rabies vaccine laws and exempting certain pets with illness from said vaccine; the petition (accompanied by bill, House, No. 4023) of Bruce J. Ayers relative to mold inspection standards; the petition (accompanied by bill, House, No. 4024) of Bruce J. Ayers that the Department of Public Health be authorized to study mold and mold spores in multi-unit dwellings; the petition (accompanied by bill, House, No. 4025) of John Barrett, III and others for legislation to establish a special commission to study the effectiveness of the executive office of health and human services; the petition (accompanied by bill, House, No. 4048) of Shirley B. Arriaga relative to post surgery infection rates; the petition (accompanied by bill, House, No. 4070) of Andres X. Vargas relative to food delivery transparency; the petition (accompanied by bill, House, No. 4075) of Manny Cruz relative to enhancing emergency infant care response; the petition (accompanied by bill, House, No. 4076) of Leigh Davis for an investigation by a special commission relative to emergency medical services; the petition (accompanied by bill, House, No. 4077) of Christopher Richard Flanagan relative to retrofitting accessibility for all medical facilities; the petition (accompanied by bill, House, No. 4078) of Christopher Richard Flanagan relative to early detection and treatment of patients with sepsis; the petition (accompanied by bill, House, No. 4118) of Leigh Davis for legislation to establish an emergency medical services treatment-in-place pilot program; the petition (accompanied by bill, House, No. 4119) of Leigh Davis for legislation to establish an emergency medical services licensure compact; the petition (accompanied by bill, House, No. 4120) of Leigh Davis relative to emergency medical services; the petition (accompanied by bill, House, No. 4121) of Paul McMurtry relative to primary care physician loan repayment program; the petition (accompanied by bill, House, No. 4122) of Lindsay N. Sabadosa relative to deceptive trade practices for emergency contraceptives and medical abortion; and the petition (accompanied by bill, House, No. 4165) of Lindsay N. Sabadosa and Erika Uytterhoeven relative to parent names on birth certificates, reports

recommending that the accompanying order (House, No. 5234) ought to be adopted.

For the committee,

MARJORIE C. DECKER.

HOUSE No. 5234

The Commonwealth of Massachusetts



House of Representatives, March 16, 2026.

1 *Ordered,* That the committee on Public Health be authorized to sit during a recess of the
2 General Court to make an investigation and study of House documents numbered 1374, 1389,
3 2222, 2359, 2360, 2361, 2365, 2368, 2373, 2377, 2379, 2385, 2386, 2387, 2388, 2404, 2405,
4 2406, 2409, 2411, 2413, 2415, 2419, 2420, 2422, 2423, 2428, 2429, 2430, 2435, 2443, 2444,
5 2445, 2448, 2452, 2453, 2456, 2457, 2460, 2461, 2468, 2469, 2471, 2472, 2479, 2480, 2481,
6 2485, 2486, 2487, 2494, 2496, 2502, 2507, 2509, 2511, 2513, 2514, 2515, 2518, 2519, 2520,
7 2522, 2524, 2533, 2534, 2538, 2539, 2540, 2542, 2543, 2556, 2558, 2560, 2561, 2562, 3955,
8 3956, 3957, 3958, 3960, 4022, 4023, 4024, 4025, 4048, 4070, 4075, 4076, 4077, 4078, 4118,
9 4119, 4120, 4121, 4122 and 4165, relative to death certificates, children's health, food safety and
10 other public health issues.

11 Said committee shall report to the General Court the results of its investigation and study
12 and its recommendations, if any, together with drafts of legislation necessary to carry such
13 recommendations into effect, by filing the same with the Clerk of the House of Representatives
14 on or before December 31, 2026.